

BEFORE THE IOWA BOARD OF SOCIAL WORK

IN THE MATTER OF:	)	CASE NO. 09-028
	)	DIA NO. 18SW0004
ANN M. NOVAK	)	
License No. 04338	)	FINDINGS OF FACT,
	)	CONCLUSIONS OF LAW,
Respondent.	)	DECISION, AND ORDER

On December 3, 2012, Respondent Ann Novak entered into a settlement agreement with the Iowa Board of Social Work (Board) in which she agreed to voluntarily surrender her social work license. On November 17, 2017, Respondent filed an application for license reinstatement with the Board.

A reinstatement hearing was held on February 12, 2018 before the following members of the Board: Mark Hillenbrand, chairperson; Megan Begley; Neil Nelsen; Amy Courneya; Karilynnne Lenning; and Tony Raymer. Assistant attorney general Laura Steffensmeier represented the state. Respondent appeared and was self-represented. The hearing was open to the public and recorded by a certified court reporter. Administrative Law Judge Laura Lockard assisted the Board in conducting the hearing and was instructed to prepare the Board's written decision in accordance with its deliberations.

THE RECORD

The record includes the Notice of Reinstatement Hearing. The record also includes State's Exhibits 1 through 7 and Respondent's Exhibits A through E. Respondent presented testimony at the hearing.

FINDINGS OF FACT

Licensure and Disciplinary History

Respondent Ann Novak was originally issued license number 04338 to practice social work in the state of Iowa in 1998. (Exh. 5).

In February 2010, the Board filed a Notice of Hearing and Statement of Charges alleging three counts: 1) habitual intoxication and inability to practice with reasonable skill and safety by reason of excessive use of alcohol on a continuing basis; 2) violating the terms of an initial agreement or the terms of an impaired practitioner recovery contract with the Impaired Practitioner Review Committee; and 3) violating a regulation, rule, or law related to the practice of social work. The statement of charges alleged that Respondent had signed an initial agreement and contract with the Impaired Practitioner Review Committee in 2009 and violated the terms of the agreement. The charges were based on allegations that Respondent had tested positive for alcohol on several occasions and that she was arrested and charged with OWI 2nd offense. (Exh. 5).

On May 24, 2011, Respondent entered into a settlement agreement with the Board to resolve the pending disciplinary charges. The agreement provided for Respondent's license to be placed on probation for a period of three years. The terms of Respondent's probation included abstention from alcohol and drugs unless prescribed or dispensed by a health care provider and providing written notice of any change in employment within five days of the date of the change. Additionally, Respondent was required to continue seeing a Board-approved psychiatrist for treatment and medication management, to see a Board-approved therapist or aftercare counselor for psychotherapy, and to attend structured recovery support group meetings. (Exh. 5).

In September 2012, the Board filed a Notice of Hearing and Statement of Charges alleging two counts: 1) habitual intoxication and inability to practice with reasonable skill and safety by reason of excessive use of alcohol; and 2) failure to comply with the terms of a board order or the terms of a settlement agreement or consent order. The statement of charges alleges that Respondent admitted to relapsing with alcohol and did not inform the Board of her termination from her position at a mental health agency in March 2012. (Exh. 6).

On December 3, 2012, Respondent entered into a settlement with the Board in which she agreed to voluntarily surrender her license to practice social work in order to resolve the pending disciplinary charges. (Exh. 6).

Reinstatement Request

The Board received a request from Respondent to reinstate her license on November 17, 2017. In her request, Respondent indicated that she is a recovering alcoholic. Respondent noted that she had 14 years sober prior to beginning to drink again, which led to the 2010 and 2012 charges filed by the Board. Respondent indicated that she relapsed at that time after she gradually stopped attending Alcoholics Anonymous meetings. After the voluntary surrender of her license in 2012, Respondent stated that her alcoholism continued to progress and she lost hope of getting sober again. According to Respondent, she got sober in late 2016 and returned to AA. Respondent reported that she is an active member of AA, attends meetings regularly, has a sponsor who she sees and calls weekly, and reaches out to others in recovery. Respondent included a letter of support from her employer and letters of support from friends who she indicated know her well. (Exh. 3).

Chad Wood, human resources manager with A Plus Home Care Services, submitted a letter with Respondent's request for reinstatement enthusiastically recommending her for license reinstatement. Wood noted that Respondent had been an excellent and hard working employee who had demonstrated compassion and commitment to helping others. Wood described Respondent as one of the organization's "very best caregivers." (Exh. 3).

Respondent's AA sponsor, who is a licensed mental health counselor, wrote a letter in support of her request for reinstatement. The sponsor knew Respondent prior to the

relapse that resulted in the surrender of her social work license and reconnected with her after Respondent completed detox in November 2016. Respondent's sponsor noted that Respondent had been attending four to five AA meetings per week and frequently chairs the meetings. Respondent's sponsor noted that Respondent has remained sober since November 2016. (Exh. 3).

Several other friends of Respondent from AA also wrote letters in support, indicating that she attends meetings regularly and is a very active member. (Exh. 3).

Additional Information Received by the Board

On January 24, 2018, Respondent's sponsor, who had previously written a letter in support of her reinstatement request, submitted a second letter to the Board. In the letter, Respondent's sponsor expressed concerns about the reinstatement of Respondent's license due to concerns about Respondent's judgment, processing of information, and physical self care. Respondent's sponsor indicated she had shared these concerns with Respondent, who reportedly reacted poorly. Respondent's sponsor indicated that she believes Respondent has remained sober, but Respondent decided to find a different AA sponsor after these concerns were expressed. Respondent's sponsor noted that she believed it might be in the Board's best interest to have Respondent's mental status and cognitive functioning evaluated. (Exh. 4)

Hearing Testimony and Exhibits

Respondent entered detoxification treatment at Unity Hospital in Minnesota on November 18, 2016. This is her sobriety date. She was discharged from detox on November 25, 2016. The discharge information that Respondent provided indicates that Respondent will go to AA as she lacks insurance for further treatment. A recommendation was also made for Respondent to seek psychiatric and psychotherapeutic care. (Exh. E; Novak testimony).

Due to her financial situation, Respondent has not been able to afford psychiatric follow up treatment. She has not had a primary care provider for the past year and has not had any mental health care since she left detox in November 2016. Her primary method of maintaining sobriety is through AA. (Novak testimony).

As of the date of hearing, Respondent did not have an AA sponsor. She ended her sponsor relationship with her previous sponsor in November 2017, as described above. Respondent disputed the concerns that her prior sponsor expressed in the January 24, 2018 letter and indicated that she felt her sponsor had become offended when Respondent made her own decisions rather than doing everything her sponsor's way. (Novak testimony).

When Respondent moved back to Iowa in February 2017, she began working as a home care provider at A Plus Home Care. Respondent worked there until January 30, 2018, when she was terminated. (Novak testimony).

According to Respondent, she was terminated because of a protective order that was placed on her relating to another person, Linda Bradbury, who has office space in the same building as A Plus Home Care. Bradbury is one of the individuals who submitted a letter in support of Respondent's request for reinstatement in November 2017. In the letter, Bradbury indicated that she had known Respondent for slightly less than a year and believed her to be an "upstanding citizen of the community." Bradbury wrote that she believed Respondent would be a great value to the community if her license were reinstated. (Exh. 3, p. 10; Novak testimony).

Respondent reported that she had been renting a room in Bradbury's home since approximately May 2017. On the same date as the reinstatement hearing, Respondent had a court date related to the protective order. Respondent reported that Bradbury testified at the hearing that Respondent threatened to physically assault her; Respondent denied that this occurred. Respondent reported that the outcome of the hearing was that the judge kept the protective order against her in place. (Novak testimony).

If Respondent is able to get her license reinstated, she plans to work at the Beloit residential campus of Lutheran Services in Iowa as a mental health counselor, providing services to emotionally and behaviorally disturbed adolescents. (Novak testimony).

CONCLUSIONS OF LAW

The applicable regulations regarding reinstatement provide, in relevant part:

11.31(1) Any person whose license to practice has been revoked or suspended may apply to the board for reinstatement in accordance with the terms and conditions of the order of revocation or suspension, unless the order of revocation provides that the license is permanently revoked.

11.31(2) If the order of revocation or suspension did not establish terms and conditions upon which reinstatement might occur, or if the license was voluntarily surrendered, an initial application for reinstatement may not be made until one year has elapsed from the date of the order or the date of the voluntary surrender.

...

11.31(4) An application for reinstatement shall allege facts which, if established, will be sufficient to enable the board to determine that the basis for the revocation or suspension of the respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The burden of proof to establish such facts shall be on the respondent.¹

¹ 645 Iowa Administrative Code (IAC) 11.31; *see also* 645 IAC 280.15.

The applicable rules place a heavy burden on persons seeking reinstatement of a revoked or surrendered license. In this instance, the Board concludes that Respondent has not met this burden. While Respondent has been actively involved in AA meetings since her most recent sobriety date, she has not been able for financial reasons to pursue any other therapy or psychiatric care, which was recommended to her upon discharge from detox. The Board also has concerns regarding Respondent's current legal issues and her termination from her most recent job as a home care provider. The Board notes that Respondent appeared at hearing to be resistant to the opinions of others and to respond with defensiveness in situations where she is presented with opinions that differ from her own.

The Board has also considered the fact that Respondent only has slightly more than one year of sobriety after her last relapse. Her last relapse occurred after 14 years of sobriety and while Respondent was being intensely monitored professionally, first by the impaired practitioner review committee and then by the Board via formal probation. The Board has concerns that Respondent's current support system, especially given her lack of an AA sponsor, may be inadequate to deal with what appears to be somewhat significant upheaval in her life at present.

Under these circumstances, the Board was not persuaded that the basis for Respondent's surrender of her license no longer exists or that it is in the public interest for her license to be reinstated.

ORDER

IT IS THEREFORE ORDERED that the request for reinstatement filed by Respondent Ann Novak is denied.

IT IS FURTHER ORDERED that prior to filing any future reinstatement request with the Board, Respondent must submit to the Board: 1) a current mental health evaluation; and 2) a current substance abuse evaluation. Both evaluations shall expressly address Respondent's fitness to practice social work and whether any conditions are required in order for her to safely practice social work.

Dated this 30th day of March, 2018.



Mark Hillenbrand
Chairperson, Iowa Board of Social Work

cc: Ann Novak
Laura Steffensmeier, Assistant Attorney General

Any appeal to the district court from a decision in a contested case shall be taken within 30 days from the issuance of the decision by the board, pursuant to Iowa Code section 17A.19.